



Standard Chartered Bank Act 1984

CHAPTER v

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ELIZABETH II



1984 CHAPTER v

An Act to provide for the transfer to The Chartered Bank of the banking business of Standard Chartered Bank PLC; and for other purposes. [12th April 1984]

WHEREAS—

(1) Standard Chartered Bank PLC (hereinafter called “SCB”) is a company incorporated under the Companies Acts 1948 to 1967 as a company limited by shares and re-registered under the Companies Act 1980 as a public limited company: 1980 c. 22.

(2) The Chartered Bank (hereinafter called “Chartered”) is a company incorporated by a Royal Charter granted by Her Majesty Queen Victoria on 29th December 1853 and continued by subsequent supplemental charters, the latest of which was granted by Your Majesty on 25th June 1956, and is a wholly-owned subsidiary of SCB:

(3) Both SCB and Chartered are recognised banks for the purposes of the Banking Act 1979 and carry on the business of 1979 c. 37. banking, SCB carrying on the business primarily in the United Kingdom and Chartered with its subsidiaries and associated companies being concerned in the international business of the Standard Chartered Bank group of companies:

(4) For the better conduct of the business of the said group it is expedient that provision be made for the transfer to Chartered of so much of the undertaking of SCB as comprises its banking business, including the business of acting as executor and trustee, and that that transfer should be effected without interference with the conduct and continuity of that business:

(5) It is expedient that the other provisions in this Act should be enacted:

(6) The objects of this Act cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Short and
collective
titles.

1975 c. iv.

1.—(1) This Act may be cited as the Standard Chartered Bank Act 1984.

(2) The Standard and Chartered Bank Act 1975 and this Act may be cited together as the Standard Chartered Bank Acts 1975 and 1984.

Interpretation.

2.—(1) In this Act, unless the subject or context otherwise requires—

“the appointed day” means 1st January 1985;

“the banking undertaking” means all that part of the undertaking of SCB which is used in the business of banking, including the business of acting as executor and trustee, comprising all existing property and liabilities of SCB, of whatsoever nature and whether or not SCB holds or is subject to the same beneficially or in any fiduciary capacity, but does not include—

(a) the directors' minute books and any books and documents relating exclusively to the shareholders and constitution of SCB;

(b) freehold land held by SCB otherwise than by way of security, and property and liabilities in, arising out of, or affecting, any such freehold land;

(c) duties and obligations of SCB in respect of its share capital, and rights in respect of advance corporation tax paid in respect of dividends thereon;

(d) loan stocks of SCB, liabilities in respect of any of its subsidiaries' loan stocks and all subordinated loans owing by SCB to its subsidiaries;

(e) stocks, shares or securities held by, or on behalf of, SCB as investments in its subsidiary or associated companies or as trade investments; and

(f) such cash, short-term funds and balances of accounts between SCB and its subsidiaries as the directors of SCB shall have designated as excluded items;

“Chartered” means The Chartered Bank;

“customer” includes any person having a bank account or other dealing, transaction or arrangement with SCB or, as the case may be, Chartered;

“existing” means existing or in force immediately before the appointed day;

“liabilities” includes duties and obligations of every description wheresoever arising (whether present or future, actual or contingent);

“property” means property and assets of every description wheresoever situate, and includes securities, rights, benefits and powers of every description;

“security” includes a mortgage or charge (whether legal or equitable), debenture, bill of exchange, promissory note, guarantee, lien, pledge (whether actual or constructive), hypothecation, indemnity, undertaking or other means of securing payment or discharge of a debt or liability (whether present or future, actual or contingent);

“SCB” means Standard Chartered Bank PLC;

“subsidiary” has the meaning given by section 154 of the Companies Act 1948; 1948 c. 38.

“will” includes a codicil and any other testamentary writing.

(2) (a) References in this Act to property and liabilities of SCB are references to all such property and liabilities, whether or not capable of being transferred or assigned by SCB.

(b) Any such reference to property of SCB is a reference to property of SCB whether situated in the United Kingdom or elsewhere.

(c) Any such reference to rights or liabilities of SCB is a reference to rights to which SCB is entitled or, as the case may be, to liabilities to which SCB is subject, whether under the law of any part of the United Kingdom or under the law of any country or territory outside the United Kingdom.

3.—(1) On the appointed day—

(a) the name of SCB shall be changed to Standard Chartered PLC; and

Change of names.

(b) the name of Chartered shall be changed to Standard Chartered Bank.

(2) The change of names of SCB and Chartered under this section shall not affect any rights or obligations of either such company, or render defective any legal proceedings by or against it; and any legal proceedings that might have been continued or commenced against it by its former name may be continued or commenced against it by its new name.

(3) As soon as may be after the passing of this Act SCB shall deliver to the registrar a Queen's Printer's copy of this Act for retention by him.

(4) On or as soon as may be after the appointed day the registrar shall enter the new name of SCB on the register of companies in place of the former name and shall issue to the company its certificate of incorporation altered accordingly.

(5) In this section "the registrar" means the registrar of companies for England for the purposes of the Companies Acts 1948 to 1983.

Transfer of
SCB's banking
business to
Chartered.

4.—(1) On the appointed day the banking undertaking shall, by virtue of this Act and without further assurance, be transferred to, and vest in, Chartered to the intent that Chartered shall succeed to the banking undertaking as if in all respects Chartered were the same person in law as SCB.

(2) As consideration for the transfer of the banking undertaking Chartered shall allot to SCB such number of shares of £1 each in the capital of Chartered credited as fully paid as SCB shall direct.

(3) Where the transfer or vesting of any property forming part of the banking undertaking is governed otherwise than by the law of any part of the United Kingdom, SCB shall, if Chartered so requires, so soon as is practicable after the appointed day, take all necessary steps for securing the effective transfer or vesting of the property to or in Chartered and, pending such transfer or vesting, SCB shall hold any such property in trust for Chartered.

Provisions as
to trust
property
transferred.

5.—(1) Any property transferred to, and vested in, Chartered by virtue of this Act which immediately before the appointed day was held by SCB, whether alone or jointly with any other person, as trustee or custodian trustee of any trust deed, settlement, covenant, agreement or will (whether originally so appointed or not and whether appointed under hand or seal, or by order of any court), or as executor of the will, or adminis-

trator of the estate, of a deceased person, or as judicial trustee appointed by order of any court, or in any other fiduciary capacity, shall, on and from the appointed day, be held by Chartered alone or, as the case may be, jointly with such other person in the same capacity upon the trusts, and with and subject to the powers, provisions and liabilities, applicable thereto respectively.

(2) Any existing instrument or order of any court under or by virtue of which (whether alone or by the operation of the Standard and Chartered Bank Act 1975) any property became vested in SCB in any such fiduciary capacity, and any provision therein, or any existing contract or arrangement for the payment to, or retention by, SCB of remuneration for its services in any such fiduciary capacity, shall, on and from the appointed day, be construed and have effect, so far as the context permits, as if for any reference therein (whether original or by virtue of the said Act of 1975) to SCB, other than a reference (however worded and whether express or implied) to terms and conditions of, or to a scale of fees of, SCB, there were substituted a reference to Chartered. 1975 c. iv.

6. Without prejudice to the generality of the foregoing provisions of this Act but subject to any provision of this Act to the contrary effect, the following provisions shall have effect:— Supplementary provisions as to transfer.

(1) Every existing contract to which SCB is a party (whether in writing or not), being a contract relating wholly or partly to the banking undertaking, shall be construed and have effect on and from the appointed day—

(a) as if Chartered had been a party thereto instead of SCB;

(b) as if for any reference (however worded and whether express or implied) to SCB there were substituted, as respects anything falling to be done on or after the appointed day, a reference to Chartered;

(c) as if any reference (however worded and whether express or implied) to the directors or to any director, officer, clerk or servant of SCB were, as respects anything falling to be done on or after the appointed day, a reference to the directors of Chartered or, as the case may require, to such director, officer, clerk or servant of Chartered as Chartered may appoint for that purpose or, in default of appointment, to the director, officer, clerk or servant of Chartered who corresponds as nearly as may be to the first-mentioned director, officer, clerk or servant; and

(d) where the contract relates partly to any property or liabilities which are not transferred to Chartered by or under this Act, as if the contract, to the extent to which it is enforceable by and against SCB, constituted two separate contracts, one of which is enforceable by and against Chartered as regards the part of the property or, as the case may be, liabilities so transferred to it and not as regards the other part, and the other of which is enforceable by and against SCB as regards the part of the property or, as the case may be, liabilities not so transferred to Chartered and not as regards the other part:

- (2) Sub-paragraphs (b) and (c) of paragraph (1) above shall apply to any statutory provision relating to the banking undertaking and to any provision so relating of any existing contract to which SCB was not a party, and sub-paragraphs (a), (b) and (c) of that paragraph shall apply to any provision so relating of any other existing document (not being a contract or a will) as, in any such case, they apply to a contract to which paragraph (1) above applies:
- (3) Any account between SCB and a customer forming part of the banking undertaking shall, on and from the appointed day, become an account between Chartered and the customer subject to the same conditions and incidents as theretofore; and such account shall be deemed for all purposes to be a single continuing account:

Provided that nothing herein shall affect any right of Chartered or of the customer to vary the conditions or incidents subject to which any account is kept:
- (4) Any existing instruction, order, direction, mandate, power of attorney, authority, undertaking or consent given to SCB (whether in writing or not and whether or not in relation to an account), except to such extent as it is, or relates to, any property or liability which is not transferred to Chartered by or under this Act, shall have effect, on and from the appointed day, as if given to Chartered:
- (5) Any negotiable instrument or order for payment of money drawn on, or given to, or accepted or endorsed by, SCB, or payable at any place of business of SCB, whether so drawn, given, accepted or endorsed before, on or after the appointed day, shall have the same effect, on and from the appointed day, as if it had been

drawn on, or given to, or accepted or endorsed by, Chartered, or were payable at the same place of business, whether a place of business of Chartered or of SCB:

- (6) The custody of any document, goods or other thing held by SCB as bailee in connection with the banking undertaking shall pass to Chartered on the appointed day, and the rights and liabilities of SCB under any contract of bailment relating to any such document, goods or thing shall be transferred on that day to Chartered:
- (7)
 - (a) Any security held immediately before the appointed day by SCB, or by a nominee of or trustee for SCB, as security for the payment or discharge of any debt or liability (whether present or future, actual or contingent) transferred to Chartered by or under this Act shall, on and from the appointed day, be held by, or, as the case may require, by that nominee or trustee for, Chartered and, to the extent of that debt or liability, be available to Chartered as security for the payment or discharge of that debt or liability;
 - (b) In relation to any security transferred to Chartered by or under this Act and any moneys thereby secured, Chartered shall be entitled to the same rights and priorities and subject to the same obligations and incidents as SCB would have been entitled or subject to if it had continued to hold the security;
 - (c) Without prejudice to the generality of paragraph (b) above, in any case where immediately before the appointed day any liability subsists between SCB and Chartered in respect of which SCB or Chartered, or a nominee of or trustee for SCB or Chartered, holds security, that liability shall, for the purpose of enforcing or realising that security, be deemed to continue in effect notwithstanding the transfer to Chartered of the banking undertaking;
 - (d) Any security referred to in the foregoing provisions of this paragraph which extends to future advances or liabilities shall, on and from the appointed day, be held by, and be available to, Chartered as security for future advances by, and future liabilities to, Chartered to the same extent and in the same manner in all respects as future advances by, or liabilities to, SCB or, as the case may be, Chartered were secured thereby immediately before that day:
- (8) Where by virtue of this Act any right or liability of SCB becomes a right or liability of Chartered, Chartered

and all other persons shall, on and from the appointed day, have the same rights, powers and remedies (and in particular the same rights and powers as to taking or resisting legal proceedings or making or resisting applications to any authority) for ascertaining, perfecting or enforcing that right or liability as if it had at all times been a right or liability of Chartered; and any legal proceedings or applications to any authority pending immediately before the appointed day by or against SCB may be continued by or against Chartered:

- (9) Any judgment or award obtained by or against SCB and not fully satisfied before the appointed day shall, to the extent to which it is enforceable by or against SCB in respect of the banking undertaking, be enforceable by or against Chartered.

References in wills.

7.—(1) No testamentary gift shall be adeemed by reason only of the operation of any of the provisions of this Act.

(2) Notwithstanding any rule of law or practice, including any such rule arising by reason of any adjudication or provision by a court having jurisdiction outside the United Kingdom, any will, whether made before, on or after the appointed day, which has not been proved in any part of the United Kingdom before the appointed day and which appoints SCB or Standard to be an executor, trustee or recipient of any property as trustee shall be construed and have effect as if for any reference therein to SCB or, as the case may be, Standard as such executor, trustee or recipient or otherwise in connection with such appointment, not being a reference (however worded and whether express or implied) to terms and conditions of, or to a scale of fees of, SCB or, as the case may be, Standard published before the making of the will, there were substituted a reference to Chartered.

1975 c. iv.

(3) Section 7 (2) of the Standard and Chartered Bank Act 1975 (which makes similar provision for the substitution of references to SCB for references in wills to Chartered or Standard) is hereby repealed.

(4) In this section “Standard” means The Standard Bank PLC.

Contracts of employment.

8.—(1) Paragraph (1) of section 6 (Supplementary provisions as to transfer) of this Act applies to a contract for the employment of any person by SCB; and employment with SCB and Chartered under any such contract shall be deemed for all purposes to be a single continuing employment.

(2) No director, secretary or auditor of SCB shall by virtue only of this Act become a director, secretary or, as the case may be, auditor of Chartered.

9.—(1) All books and other documents which would, before the appointed day, have been evidence in respect of any matter for or against SCB shall be admissible in evidence in respect of the same matter for or against Chartered. Evidence: books and documents.

(2) In this section “documents” has the same meaning as in section 10 of the Civil Evidence Act 1968. 1968 c. 64.

10.—(1) On and from the appointed day the Bankers’ Books Evidence Act 1879 shall apply to the books of SCB transferred to Chartered by virtue of this Act, and to entries made therein before the appointed day, as if such books were the books of Chartered. Application of Bankers’ Books Evidence Act 1879.
1879 c. 11.

(2) For the purposes of section 4 of the said Act of 1879, books so transferred to Chartered shall be deemed to have been the ordinary books of Chartered at the time of the making of any entry therein which purports to have been made before the appointed day, and any such entry shall be deemed to have been made in the usual and ordinary course of business.

(3) In this section “books” shall be construed in accordance with section 9 (2) of the said Act of 1879.

11.—(1) The production of a Queen’s Printer’s copy of this Act shall, for all purposes, be conclusive evidence of the transfer of any property and liabilities of SCB to Chartered, and of the vesting thereof in Chartered, in accordance with the provisions of this Act. Evidence of transfer.

(2) Without prejudice to the generality of subsection (1) above, any such copy of this Act shall, in relation to any registered securities within the meaning of the Stock Transfer Act 1963 transferred to Chartered by virtue of this Act, operate for all the purposes of the said Act of 1963 or of the Stock Exchange (Completion of Bargains) Act 1976 as a duly executed stock transfer in respect of the transfer of such securities from SCB to Chartered. 1963 c. 18.
1976 c. 47.

12.—(1) Without prejudice to the generality of subsection (1) of section 11 (Evidence of transfer) of this Act— Transactions affecting property, etc.

(a) any document made or executed on or after the appointed day whereby Chartered, whether alone or jointly with any other person, conveys or transfers, or

purports to convey or transfer, to any person (whether for consideration or not), or applies to be registered as the holder or proprietor of, any property held by SCB immediately before the appointed day, whether alone or jointly with any other person, shall be sufficient evidence that the interest of SCB in that property has vested in Chartered under this Act; and

- (b) where there is any other transaction by Chartered on or after the appointed day in connection with, or in relation to, any property held by SCB immediately before the appointed day, it shall be deemed in favour of any other party to that transaction, or any person claiming through or under him, that Chartered has full power and authority for that transaction as if the property had vested in it under this Act.

(2) (a) Any document made or executed on or after the appointed day whereby SCB, whether alone or jointly with any other person, conveys or transfers, or purports to convey or transfer, to any person (whether for consideration or not), or applies to be registered as the holder or proprietor of, any property held by it immediately before the appointed day, whether alone or jointly with any other person, shall be sufficient evidence that its interest in that property has not vested in Chartered under this Act.

(b) Where there is any other transaction by SCB on or after the appointed day in connection with, or in relation to, any property held by SCB immediately before the appointed day, it shall be deemed in favour of any other party to that transaction, or any person claiming through or under him, that SCB has full power and authority for that transaction as if the property had not vested in Chartered under this Act.

(3) A joint certificate given by or on behalf of SCB and Chartered, whether given before, on or after the appointed day, that any property or liability specified in the certificate vests in Chartered, or is excepted from transfer to Chartered, under this Act shall be conclusive evidence for all purposes of the fact so certified.

(4) Nothing in this section—

- (a) applies to any property falling within subsection (3) of section 4 (Transfer of SCB's banking business to Chartered) of this Act; or
- (b) affects the liability of SCB or Chartered to the other of them in respect of anything done, or purporting to have been done, by either of them in connection with, or in relation to, any property.

(5) In subsection (1) above “convey” has the same meaning as in the Law of Property Act 1925. 1925 c. 20.

13. The transfer or vesting of an interest in land by virtue of this Act shall not— Transfer of interests in land.

(a) constitute a purchase or creation of that interest for the purposes of section 30 (2) of the Landlord and Tenant Act 1954; or 1954 c. 56.

(b) constitute an assignment, transfer, devolution, parting with possession or other disposition of that interest for the purposes of any provision relating to assignment, transfer, devolution, parting with possession or other disposition contained in any instrument concerning that interest; or

(c) give rise to any forfeiture; or

(d) invalidate or discharge any contract or security; or

(e) operate so as to merge any leasehold interest in the reversion expectant on it.

14. Nothing in this Act shall prejudice the powers of SCB to alter its memorandum and articles of association or the powers of Chartered to alter its byelaws and rules; and nothing in this Act shall prejudice the powers of SCB or Chartered to dispose of, or deal with, its assets or to carry on or discontinue its business or part thereof. Saving for companies.

15. Nothing in this Act shall exempt SCB or Chartered or any other subsidiary of SCB from the provisions of any enactment regulating the carrying on of the business of any of them. Saving for enactments concerning banking institutions.

16.—(1) This Act shall extend to Scotland and Northern Ireland. Application to Scotland and Northern Ireland.

(2) In the application of this Act to Scotland the following provisions shall have effect:—

(a) In the construction of this Act—

“assignment” includes an assignation;

“bailee” includes a custodian or a holder on deposit or pledge and “contract of bailment” includes any other contract regulating custody of things;

“debenture” includes a floating charge or any instrument containing a floating charge;

“freehold land” includes heritable property;

“judgment” includes a decree;

“judicial trustee” includes a judicial factor;

“mortgage” includes a standard security, an assignation or disposition *ex facie absolute* and any agreement qualifying the same, a bond and disposition or assignation in security, a cash credit bond and disposition or assignation in security, an assignation in security and any real right or burden of whatever kind in the nature of a security; and

“will” includes a trust disposition and settlement and any deed taking effect on the death of any person whereby any part of his estate is disposed of, or under which a succession thereto arises:

(b) All standard securities and cash credit bonds and dispositions or assignations in security expressed to be in favour of SCB vested in Chartered by virtue of this Act shall, on and from the appointed day, have the same effect in favour of Chartered up to the maximum amounts stated therein respectively in all respects as if they had been originally granted in favour of Chartered for such maximum amounts:

(c) To enable Chartered to complete a title, if thought fit, to any property vested in it by virtue of this Act by notice of title or otherwise, or to deduce title, this Act shall be deemed to be, and may be used as, a general disposition, conveyance or, as the case may be, assignation of such property in favour of Chartered:

(d) For the reference in subsection (2) of section 9 (Evidence: books and documents) of this Act to section 10 of the Civil Evidence Act 1968 there shall be substituted reference to section 17 of the Law Reform (Miscellaneous Provisions) (Scotland) Act 1968.

1968 c. 64.

1968 c. 70.

(3) In the application of this Act to Northern Ireland—

(a) for the reference in subsection (2) of section 9 (Evidence: books and documents) of this Act to section 10 of the Civil Evidence Act 1968 there shall be substituted reference to section 6 of the Civil Evidence Act (Northern Ireland) 1971;

(b) the references in subsection (2) of section 11 (Evidence of transfer) of this Act to the Stock Transfer Act 1963 and the Stock Exchange (Completion of Bargains) Act 1976 shall include references to the Stock Transfer Act (Northern Ireland) 1963 and the Stock Exchange (Completion of Bargains) (Northern Ireland) Order 1977;

1971 c. 36
(N.I.).

1963 c. 18.

1976 c. 47.

1963 c. 24
(N.I.).

S.I. 1977/1254
(N.I. 21).

- (c) for the reference in subsection (5) of section 12 (Transactions affecting property, etc.) of this Act to the Law of Property Act 1925 there shall be substituted reference to the Conveyancing Act 1881; 1925 c. 20. 1881 c. 41. and
- (d) for paragraph (a) of section 13 (Transfer of interests in land) of this Act, there shall be substituted the following:—

“(a) constitute a purchase or creation of an estate for the purposes of section 10 (3) of the Business Tenancies Act (Northern Ireland) 1964;”.

1964 c. 36
(N.I.).

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